

STATE OF NEW YORK

8607--A

2025-2026 Regular Sessions

IN SENATE

December 8, 2025

Introduced by Sens. WALCZYK, BORRELLO, CHAN, GALLIVAN, HELMING, MATTERA, MURRAY, OBERACKER, ORTT, RHOADS, STEC, TEDISCO -- read twice and ordered printed, and when printed to be committed to the Committee on Rules -- recommitted to the Committee on Environmental Conservation in accordance with Senate Rule 6, sec. 8 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the environmental conservation law, in relation to the calculation of statewide greenhouse gas emission limits; and to repeal section 75-0109 of the environmental conservation law relating thereto

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. Section 75-0109 of the environmental conservation law is REPEALED.

§ 2. Subdivision 2 of section 75-0101 of the environmental conservation law, as added by chapter 106 of the laws of 2019, is amended to read as follows:

2. "Carbon dioxide equivalent" means the amount of carbon dioxide by mass that would produce the same global warming impact as a given mass of another greenhouse gas over an integrated [~~twenty-year~~] one hundred-year time frame after emission.

§ 3. Subdivision 1 of section 75-0107 of the environmental conservation law, as added by chapter 106 of the laws of 2019, is amended to read as follows:

1. No later than one year after the effective date of this article, the department shall, pursuant to rules and regulations promulgated after at least one public hearing, establish a statewide greenhouse gas emissions limit as a percentage of 1990 emissions, as estimated pursuant to section 75-0105 of this article[~~, as follows:~~

~~a. 2030: 60% of 1990 emissions.~~

~~b. 2050: 15% of 1990 emissions].~~

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [~~-~~] is old law to be omitted.

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1 § 4. Notwithstanding any law, rule or regulation to the contrary, the
2 department of environmental conservation shall update the statewide
3 greenhouse gas emissions limit established pursuant to subdivision 1 of
4 section 75-0107 of the environmental conservation law, to maintain
5 consistency with the definition of the term carbon dioxide equivalent,
6 as defined by subdivision 2 of section 75-0101 of the environmental
7 conservation law, as amended by section two of this act.

8 § 5. This act shall take effect immediately.